FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK AND FIDUCIARY CLERK/COURT- MUST BE COMPLETED WITHIN 30 DAYS OF SALE
If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF RICHMOND

---------- X

UMB Bank, National Association, not in its individual capacity, but solely as legal title trustee for LVS Title Trust XIII,

Plaintiff,

Part:_____

Hon.

-against-

Index No.: 135345/2024

Richmond County Public Administrator as Administrator of the Estate of Gilbert Guity a/k/a Gilbert Guity, Jr., Carlotta Guity as Heir to the Estate of Gilbert Guity a/k/a Gilbert Guity, Jr., Emilio Guity as Heir to the Estate of Gilbert Guity a/k/a Gilbert Guity, Jr., Citibank, N.A., Board of Managers of Imperial Towers Condominium, New York State Department of Taxation and Finance, New York City Environmental Control Board, New York City Parking Violations Bureau, New York City Transit Adjudication Bureau, United States of America - Internal Revenue Service, "John Doe" (Refused Name),

Defendants.

---------- X

Property Address: 55 Austin Place, Unit 2E, Staten Island, NY 10304

Sale Date: April 16, 2026

County: Richmond

Block: 579; Lot: 1112

A. **To be completed by the Referee**

1. Final Judgment amount per Judgment $ 139,111.40

2. Adjusted Judgment Amount (Upset Price)
(This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.) $~~160,044.92~~ 106,500

3. Sale price $ 108,000
(To compute surplus, subtract line 3 from higher amount indicated on line 1 or 2 and enter on line 4)

4. Surplus Amount (enter $0.00 if no surplus) $_____

*** If there are surplus funds, attach proof/receipt that surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of the court, etc.*

Referee's TOTAL Compensation awarded/fees earned in this matter: $1,100.00

Referee Name Jonathan Maida Telephone:718-351-3085

Address: ~~25 Nevada Avenue~~ 4459 Amboy Rd, Suite 1

Staten Island, NY ~~10306-1307~~ 10312

E-Mail Address: Jonathan@maidalawoffice.com

Signature and Date: 4/16/26

B. To be completed by Plaintiff's Representative

Name: Frenkel & Lambert

Address: 53 Gibson St., Bay Shore, NY 11706

Telephone: 631-969-3100

Signature and Date: 4-16-26

C. To be completed by Purchaser

DIMITRY SEMAROSHY
31 Port Richmond Ave
Staten Island NY 10302

Name: ~~Frenkel & Lambert~~

Address: ~~53 Gibson St., Bay Shore, NY 11706~~

Telephone: ~~631-969-3100~~

Signature and Date: 4/16/2026

Our File No.:01-056288-F01